

		Defendant to file the Cross-Complaint attached to the instant motion as Exhibit A, without any changes, within 10 days of this ruling. Moving Party is to give notice.
53	Varilease Finance, Inc. vs. Tactical Fleet Services, LLC 23-01301701	Motion to Appear Pro Hac Vice The unopposed Application of Seamus W. Appel to appear as counsel <i>pro hac vice</i> on behalf of Plaintiff Varilease Finance, Inc. is GRANTED. Moving attorney met the requirements of California Rules of Court, rule 9.40. Plaintiff or Seamus W. Appel to give notice.
54	Andrews vs. General Motors, LLC 24-01448034	Motion for Attorney Fees The Motion for Attorneys’ Fees and Costs brought by Plaintiff Kimberly Andrews is GRANTED, in part. Defendant General Motors, LLC is ordered to pay Plaintiff attorneys’ fees in the amount of \$20,439.00 and costs in the amount of \$1,010.83, pursuant to Civil Code section 1794, subdivision (d). Plaintiff’s evidentiary objections are OVERRULED. (ROA No. 78.) It is undisputed the Song-Beverly Act allows a prevailing plaintiff to recover “costs and expenses, including attorneys’ fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, §1794, subd. (d).) Additionally, it is undisputed Plaintiff qualifies as a “prevailing party,” for purposes of this provision. Consistent with the Offer to Compromise reached by the parties, the Judgment states: “Plaintiff’s attorney’s fees, expenses and costs that have been reasonably incurred pursuant to California <i>Civil Code</i> § 1794(d) may be determined by the Court via noticed motion. For purposes of any such motion, GM agrees that Plaintiff is the prevailing party.” (See ROA No. 66 [Judgment]; See also ROA No. 45 [Offer to Compromise].) Lastly, there is no dispute this motion was timely brought. (See Cal. Rules of Court rules 3.1702(b)(1) and 8.104(a).) The instant motion was filed on May 11, 2026, prior to entry of Judgment on May 13, 2026. (See ROA Nos. 57 and 66; See also <i>Yuba Cypress Housing Partners, Ltd. v. Area Developers</i> (2002) 98 Cal.App.4th 1077, 1086.) “[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (<i>PLCM Group v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.) “ ‘In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of